orange™ Business Services

Business VPN Off-Net Further Service Specification and Additional Pricing Provisions Proposal

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Business Services

Document History

Version	Date	Changes Made	Author(s)
1.0	15 April 2014	Original	Creaky Blinder
1.1	29 April 2014	Edits. a. Add Backbone Mgmt service definition b. Revise Backbone Management MRC c. Modify Orange IPLC text d. Modify text surrounding BVPN Offnet NRC	Creaky Blinder
1.2	28 May 2014	Modify Backbone Management pricing	Creaky Blinder
1.3	20 June 2014	Edits a. Add introduction language, BVPN Offnet, Router Management and Orange Mgd IPLC service definition language b. Revise #of Pops per country list c. Update Cat List (Add Iran, Cat 2 Waves) d. Add Iran to the Landing Country table e. Modify NRC charges to remove LDM component from BVPN Offnet and Router f. Minor edits	Creaky Blinder
1.4	26 June 2014	Edits a. Refresh BVPN Offnet prices following the agreement to price @ landing country – 51.9% b. Edits surrounding Impact based changes involving routers. Does not get 50% discount per 3.2.3.1 c. Revise landing country table to note that Senegal landing country is Senegal	Creaky Blinder
1.5	27 June 2014	Edits a. Edits under the request of SITA (change title,expand introduction to align with DA, additional references to DA schedules b. Modification to prices for IPLC Contract Novation	Creaky Blinder
1.6	2 July 2014	Edits a. Revise landing country table to note that Indonesia landing country in Indonesia	Creaky Blinder
1.7	2 July 2014	Edits a. Clarifiying language surrounding the pricing of IPLCs in section 3.3.4	Creaky Blinder

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1. Introduction

1.1 Summary

This document is a commercial proposal under the terms of the Distribution Agreement between the Parties with an Effective Date of 1 July 2014.

Additionally, this document describes a basic service definition of the various items which comprise the Backbone Management and Business VPN Offnet services as well as the associated pricing and commercial terms. The sections covered include:

a. Backbone Management
b. Router Management
c. Business VPN Offnet
d. Orange Managed IPLC

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2. Service Definition / Statement of Work

2.1. Purpose

This service definition / SoW is without prejudice to the BVPN service description, and is intended to further define certain service aspects of BVPN Offnet service

2.2. Business VPN Offnet and Router Management

2.2.1. Business VPN Offnet

The Parties agree the following in relation to the BVPN-Offnet service:

Business VPN Off-Net will provide the same features as Business VPN in all material respects subject to the following:

(a) features are dependent upon SITA providing the specific service elements as allocated to SITA (or a SITA Partner where relevant) in Schedule G Part 2.1; and

(b) use of the features of Business VPN Offnet will be subject to the capabilities and infrastructure of the SITA Partners (in Category 2 Countries) and SITA (in Category 3 Countries).

2.2.2. Router Management

Currently, Orange and SITA have an jointly approved Router Management and Maintenance Service definition already in place (Router maintenance and management definition version 0.1 dated November 25, 2011). The router maintenance in Category 2 and 3 countries are now the responsibility of SITA and references to the service definition do not apply.

Orange will still supply router management services as defined in section 5 of the service definition. However, Orange needs to review the section related to end to end SLA (service availability, transit delay, packet loss and jitter, as well as time to repair service delivery) for the CE router in Category 2 and 3. Orange may not be able to support such items in those countries. This will be reviewed by the Orange product manager after the TTM qualification and the Router maintenance and management definition description will be updated.

2.3. Backbone Management

Backbone management service covers the service design, service transition and service operation activities required to operate SITA network infrastructure in category 2 and 3 countries.

The Distribution Agreement Schedule Gis the reference point for Orange and SITA responsibilities. Below are additional details regarding the activities covered by Orange

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2.3.1. Network Design

Orange provide the following:

- network engineering technical guidelines
- reference architectures for in-country network infrastructures.
- network infrastructure lifecycle recommendations
- capacity management for country network infrastructure including partner gateway interconnection when applicable.
- pre-sales support for validation of non-standard requests above pre-defined thresholds based on capacity constraints
- relationship with network equipment supplier: engineering relationship, hardware and software catalogue management, commercial and contractual relationship.
- network security policy.
- ad-hoc technical support to SITA Sourcing for capacity sourcing (as SITA is responsible for sourcing activity and contract management with carriers providing in-country access, domestic and international network links for Category 2 and 3 countries and with partners in Category 2 countries.)

All non-standard network architecture and engineering requirements, not in line with Orange long-term network development plan ("LTNDP"), will be handled through specific projects chargeable to SITA.

2.3.2. Network deployment and change management

Orange provide the following:

- project management of network deployment and network changes implementation and associated communication.
- network equipment and network circuit ordering (on behalf of SITA subject to legal constraints) and delivery coordination.
- providing site infrastructure specifications (but SITA will have the responsibility of site infrastructure.
- managing projects of site opening/closure/move but relying on local SITA managed resources.
- network sparing policy, ordering (on behalf of SITA) and delivery of spare parts.
- network and network circuit inventory tools and their update. SITA will have access to these tools or reports

2.3.3. Network Operation

Orange will provide overall network operations (up to the partner NNI gateway for category 2 countries):

- event management
- incident management
- problem management
- performance management and reporting
- network usage monitoring.
- service improvement plan (SIP) production and execution

Orange provide visibility to SITA

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- on network incidents through Network Incident Advisory (NIAs) reports.
- on network problem management through Root Cause Analysis (RCA) reports.

SITA is responsible for providing field services (own or local partner resources) for network maintenance and repair activity. Orange will coordinate the field services intervention.
For POP infrastructure in Category 3 countries, the network equipment maintenance (Nortel, Cisco) is included in the Backbone Management service fee. This maintenance covers supplier technical support. For Cisco, this includes also the hardware replacement Return to Factory, Next Business day when available from the supplier but not 4H replacement (additional chargeable service). As the site facilities infrastructure is under SITA responsibility, the maintenance is not included in the Backbone Management service.

2.3.4. Non-standard projects

Non-standard projects are not part of backbone management services and will be charged separately.
It is difficult to define a list of non-standard projects but below are some examples:

- non-standard network engineering requirements (not in line with Long Term Network Development Plan)
- non-standard equipment engineering requirements for embargo countries
- non-standard engineering requirement for Legal intercept solution specific to a category 2 or 3 country.
- any specific POP closure program beyond lifecycle: this means for example SITA requiring to close all POPs in majority of cat 3 countries to replace them with APH at the same time and in parallel.

For the avoidance of doubt, the following projects are not considered as a non-standard projects and are covered by Backbone Management service: deployment or decommissioning of a network POP (possible customer migrations resulting from this POP change are not included in the Backbone Management service), and POP upgrade to IGN+ standards.

2.4. Orange Managed IPLC

Orange will provide International capacity which is built on Orange's international network infrastructure. The circuit may be provided as an Orange end to end segment and possibly an half circuit. Even in half circuit instances, Orange will ensure the operability of the full circuit and work with the partner's of the other half circuit.

Characteristics of circuits may vary in terms of technology (SDH, Ethernet, satellite) and speed depending on the geographies. Orange will supply any or all of these technologies as parr of this service.

3. Pricing

The pricing section defines the scope of the components surrounding Business VPN Offnet, Backbone Management, Router Management and Orange Managed IPLC's

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3.1. Non-Recurring Charges

SITA will be charged one-time events consistent with the existing SITA price book with some exceptions

3.1.1. BVPN Offnet

3.1.1.1. Moves, Changes, and Disconnections will be charged per charged price book as defined for IPVPN based on the landing country of the connection.

For Adds (installations), SITA will will be charged per the table below based on the landing country of the connections. This is a reduced charge from the standard price book for IPVPN Adds to account for the LDM function that Orange will be charging via a separate proposal which will eventually transition over to SITA.

Service	Chargeable Element	WE Zone 1	EE Zone 2	NAM Zone 3	APA Zone 4	ME Zone 5	AF Zone 6	SAM Zone 7	CAM Zone 8
BVPN Offnet	Port	657	657	840	657	840	840	840	840
BVPN Offnet	Secondary Port	657	657	840	657	840	840	840	840

A separate proposal exists for migration charges associated with Category 2 BVPN Offnet connections. The charges may deviate from charges associated with this proposal.

3.1.1.2. Change Catalog (impact based changes) will be charged per price book as defined for IPVPN

3.1.2. Backbone Management

No non-recurring charges apply over and above what has been previously defined in the NNI Implementation proposal

3.1.3. Router Management

3.1.3.1. Moves, Changes (not part of 3.2.1.1 above) and Disconnections will be charged per price book for Router Management and Maintenance less 50% based on the landing country of the IPVPN connection. Impact

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based changes as part of the change catalog (including MCS Disruptive Testing) will be per 3.2.1.2 and not subject to the 50% discount.

For Adds (installations), SITA will will be charged per the table below based on the landing country of the connections. This is a reduced charge from the standard price book for Router Adds to account for the LDM function that Orange will be charging via a separate proposal which will eventually transition over to SITA.

Service	Chargeable Element	WE Zone 1	EE Zone 2	NAM Zone 3	APA Zone 4	ME Zone 5	AF Zone 6	SAM Zone 7	CAM Zone 8
BVPN Offnet Router	Router	329	329	420	329	420	720	420	420

3.2. Recurring Charges

3.2.1. Backbone Management

As per 3.2.1, the charge for Backbone Management is dependent upon the number of pop's defined within the country. The monthly price per country is per the table below:

Pop's Per Country	Price per Country Per Month
1	$3,800
2	$5,000
3	$5,400
4	$6,500
UAE	$19,000
China	$26,000

This pricing table will be refreshed on an annual basis at July 1 consistent with the update of the SITA price book. Orange and SITA need to discuss and agree on an annual price adjustment scheme. The price levels above are based on the category list defined in section 3.1.1. In the event that both parties agree to add more countries to this list, Orange reserves the right to establish a new charge specific to such country(s) even if the number of PoP is between one through six. Orange will share the rationale with SITA in the event it requires a higher charge as per the table above

3.2.1.1. Special Rules for Category 2 Countries and their NNI Partner

NNI Partners are treated as a "1 PoP" country (i.e. $3,800) for pricing purposes. This applies regardless as to the number of countries migrated onto the NNI. In the event SITA migrate multiple countries onto a

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single NNI, only one Backbone Management applies. The individual country will no longer receive a discreet Backbone Management charge.

For example, if Partner CMC set up an NNI with Orange and nine (9) countries are aligned to it, SITA will receive a single charge of $3,800 per month. CMC will be treated as a "1 PoP" country. No charges will apply to individual countries

A country is deemed as "migrated" over to the partner NNI for Backbone Management pricing purposes once the last connection is migrated to the partner. Until such time, Orange still retain accountability to manage the backbone needs of that country. Until the last connection is migrated, Backbone Management charges will be applied per the number of PoP's defined per that country.

For example, Burkina Faso is defined as a Category 2 country and establishes a country implementation with the partner in Month 1. SITA begins migrating connections onto the Partner NNI in Month 1 and completes the migration of the final connection in Month 6. For months 1-6, SITA will be charged a Backbone Management charge specifically for Burkina Faso. In Month 7, SITA will no longer incur a Backbone Management charge for Burkina Faso and will fall under the umbrella of the Partner PoP 1 distinction.

3.2.2. BVPN Offnet

The BVPN Offnet recurring connection charge is based on an "IPVPN Minus X%" pricing scheme based on the landing country defined in 3.1.3 above. . The discount applied to the BVPN Offnet connection is set at 51.9%

For example, if in Cameroon we have a 256K Gold connection, the BVPN Offnet price would be set at $103 (European Backbone proxy of United Kingdom Base Charge for PBY14 of $214 less 51.9%)

For the avoidance of doubt, all class of service and MCS co-efficient's apply (e.g.. Silver CoS set at 20% lower than Gold and MCS being set at 50% lower than a primary connection, etc)

3.2.2.1. Special Terms and Conditions

- The BVPN OffNet charge is dependent upon the landing country and if SITA change the landing country then Orange reserves the right to immediately change the price for future connections and the existing base
- All implementations are limited by SSAM speed at the Landing Country
- Since the pricing scheme is IPVPN Minus X%, benchmarking rules will apply based on the landing country. However, the benchmarking prices will change future price books and future connections only. Benchmark adjustments will not be a trigger to reduce the entire base of connections for that country.

3.2.3. Router Management

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Router Management for BVPN Offnet differs from Router Management and Maintenance per standard IPVPN. In Category 2 and 3 countries, SITA will take over the "maintenance" responsibilities. Orange will continue to manage the environment between the CE and the PE as well as monitor the local access connectivity.

Recurring charges for Router Management will be based on the prevailing Router Management and Maintenance price book less 40%. As the price book evolves, this charge will continue to stay aligned with the router management and maintenance schedule

For example, a CS2811 Router (Type 2) per the SITA price book in Thailand (APA) is $82. The Router Management as part of BVPN Offnet is set at $49 ($82 less 40%).

3.2.4. International Private Line Circuits (IPLC's)

IPLC's are utilized to connect a Category 2/3 country to an Orange landing country. Within the inventory of IPLC's, many of them are already contracted by SITA , many are contracted and managed by Orange, and many are currently in Orange's name but in the process of being novated over to SITA.

3.2.4.1. Contacts Already in SITA's name

As part of the inventory, numerous lines are identified as already being in SITA's name. Orange will no longer have any operational nor financial commitment for such circuits and SITA will bear sole responsibility of them. The charges identified in 3.3.4.3 below are listed at Cost for informational purposes

3.2.4.2. Orange Managed IPLC's

3.2.4.2.1. Lease Contract

The contracts for these circuits are currently in the name of Orange and Orange will continue to be the owner of such contracts. Orange will continue to manage and maintain such circuits as a means for SITA to reach from a Cat 2/3 interconnection point to the Orange landing country.

Prices will remain unchanged as long as Orange's contract with its underlying supplier(s) do not change. Orange's contracted costs are oftentimes modified during the contract IPLC expiration period. Orange reserves the rights to amend) charges in the event its underlying costs change.

Orange will agree to not materially change the prices unless it has justification to do so and will share reasonable evidence of such action. In the event SITA elect to disconnect an Orange managed IPLC, Orange will hold prices constant at the existing price levels for a sixty (60) day period.

3.2.4.2.2. Contracts to be Novated

These contracts are currently in the name of Orange and are supposed to be novated over to SITA. If a contract is in "contract novation" stage at the beginning of the wave, Orange will continue to manage the circuits and charge SITA accordingly until the contract is novated. Once the contract is novated, Orange

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will not charge SITA for the circuits. If any novatable contracts are still under the financial responsibility of Orange after six months, Orange may revisit the charges and may submit SITA a new commercial proposal.

As a general rule, Orange attempts to follow a balanced pricing principle in price setting for the “to be novated” IPLC’s in a way similar to what SITA will charge to Orange for Orange connections in Cat 2/3 countries. All charges in the table in 3.3.4.3 below are reflected as Cost + an Orange Management Fee.

4. Ordering and Billing

Order Based Billing will be employed for BVPN Offnet and Router Management. For Backbone Management and Orange Managed IPLC, Orange still needs to investigate how SITA will be invoiced. OBB cannot apply for Backbone Management nor Orange Managed IPLC because the charge is not related to any specific customer or order.

The Billing chain details still need to be evaluated

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